THE REPEALING AND AMENDING ACT, 2019

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ARRANGEMENT OF SECTIONS

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SECTIONS

1. Short title.
2. Repeal of certain enactments.
3. Amendment of certain enactments.
4. Savings.

THE FIRST SCHEDULE.

THE SECOND SCHEDULE.

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THE REPEALING AND AMENDING ACT, 2019

ACT NO. 31 OF 2019

[8*th August*, 2019.]

An Act to repeal certain enactments and to amend certain other enactments.

BE it enacted by Parliament in the Seventieth Year of the Republic of India as follows:—

1. Short title.—This Act may be called the Repealing and Amending Act, 2019.

2. Repeal of certain enactments.—The enactments specified in the First Schedule are hereby repealed.

3. Amendment of certain enactments.—The enactments specified in the Second Schedule are hereby amended to the extent and in the manner specified in the fourth column thereof.

4. Savings.—The repeal by this Act of any enactment shall not affect any other enactment in which the repealed enactment has been applied, incorporated or referred to;

and this Act shall not affect the validity, invalidity, effect or consequences of anything already done or suffered, or any right, title, obligation or liability already acquired, accrued or incurred, or any remedy or proceeding in respect thereof, or any release or discharge of or from any debt, penalty, obligation, liability, claim or demand, or any indemnity already granted, or the proof of any past act or thing;

nor shall this Act affect any principle or rule of law, or established jurisdiction, form or course of pleading, practice or procedure, or existing usage, custom, privilege, restriction, exemption, office or appointment, notwithstanding that the same respectively may have been in any manner affirmed or recognised or derived by, in or from any enactment hereby repealed;

nor shall the repeal by this Act of any enactment revive or restore any jurisdiction, office, custom, liability, right, title, privilege, restriction, exemption, usage, practice, procedure or other matter or thing not now existing or in force.

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THE FIRST SCHEDULE

(*See* section 2)

REPEALS

Year	Act No.	Short Title
1	2	3
1850	XII	The Public Accountants' Defaults Act, 1850.
1881	XI	The Municipal Taxation Act, 1881.
1892	X	The Government Management of Private Estates Act, 1892.
1956	69	The Terminal Tax on Railway Passengers Act, 1956.
1958	56	The Himachal Pradesh Legislative Assembly (Constitution and Proceedings) Validation Act, 1958.
1960	22	The Cotton Transport (Amendment) Act, 1960.
1963	1	The Hindi Sahitya Sammelan (Amendment) Act, 1963.
1963	35	The Dramatic Performances (Delhi Repeal) Act, 1963.
1964	10	The Public Employment (Requirement as to Residence) Amendment Act, 1964.
1968	49	The Delhi and Ajmer Rent Control (Nasirabad Cantonment Repeal) Act, 1968.
1973	56	The Alcock Ashdown Company Limited (Acquisition of Undertakings) Act, 1973.
1976	55	The Iron Ore Mines, Manganese Ore Mines and Chrome Ore Mines Labour Welfare Cess Act, 1976.
1976	61	The Iron Ore Mines, Manganese Ore Mines and Chrome Ore Mines Labour Welfare Fund Act, 1976.
1976	62	The Beedi Workers Welfare Fund Act, 1976.
1980	68	The Tea (Amendment) Act, 1980.
1981	62	The Aligarh Muslim University (Amendment) Act, 1981.
1982	63	The Road Transport Corporations (Amendment) Act, 1982.
1983	41	The Transformers and Switchgear Limited (Acquisition and Transfer of Undertakings) Act, 1983.
1988	22	The Tamil Nadu Agricultural Service Co-operative Societies (Appointment of Special Officers) Amendment Act, 1988.
1999	3	The High Denomination Bank Notes (Demonetisation) Amendment Act, 1998.
2001	39	The Motor Vehicles (Amendment) Act, 2001.
2001	48	The Registration and Other Related Laws (Amendment) Act, 2001.
2002	16	The Institutes of Technology (Amendment) Act, 2002.
2002	43	The Delhi University (Amendment) Act, 2002.
2007	3	The Dalmia Dadri Cement Limited (Acquisition and Transfer of Undertakings) Amendment Act, 2006.
2007	28	The Central Road Fund (Amendment) Act, 2007.
2009	21	The Prevention of Money-laundering (Amendment) Act, 2009.

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1	2	3
2009	22	The Central Industrial Security Force (Amendment) Act, 2009.
2009	38	The Central Universities (Amendment) Act, 2009.
2010	3	The Civil Defence (Amendment) Act, 2009.
2011	6	The Repatriation of Prisoners (Amendment) Act, 2011.
2011	14	The Customs (Amendment and Validation) Act, 2011.
2012	28	The National Institutes of Technology (Amendment) Act, 2012.
2012	34	The Institutes of Technology (Amendment) Act, 2012.
2014	8	The Governors (Emoluments, Allowances and Privileges) Amendment Act, 2014.
2014	9	The National Institute of Technology, Science Education and Research (Amendment) Act, 2014.
2014	19	The Andhra Pradesh Reorganisation (Amendment) Act, 2014.
2014	20	The Telecom Regulatory Authority of India (Amendment) Act, 2014.
2014	31	The Merchant Shipping (Amendment) Act, 2014.
2014	32	The Merchant Shipping (Second Amendment) Act, 2014.
2014	39	The National Capital Territory of Delhi Laws (Special Provisions) Second (Amendment) Act, 2014.
2015	2	The Public Premises (Eviction of Unauthorised Occupants) Amendment Act, 2015.
2015	3	The Motor Vehicles (Amendment) Act, 2015.
2015	5	The Insurance Laws (Amendment) Act, 2015.
2015	10	The Mines and Minerals (Development and Regulation) Amendment Act, 2015.
2015	12	The Andhra Pradesh Reorganisation (Amendment) Act, 2015.
2015	14	The Regional Rural Banks (Amendment) Act, 2015.
2015	16	The Warehousing Corporations (Amendment) Act, 2015.
2015	21	The Companies (Amendment) Act, 2015.
2016	10	The Election Laws (Amendment) Act, 2016.
2016	13	The High Court and the Supreme Court Judges (Salaries and Conditions of Service) Amendment Act, 2016.
2016	25	The Mines and Minerals (Development and Regulation) Amendment Act, 2016.
2016	42	The National Institute of Technology, Science Education and Research (Amendment) Act, 2016.
2016	45	The Central Agricultural University (Amendment) Act, 2016.
2016	48	The Taxation Laws (Second Amendment) Act, 2016.
2017	19	The National Institute of Technology, Science Education and Research (Amendment) Act, 2017.
2017	21	The Collection of Statistics (Amendment) Act, 2017.
2017	25	The Indian Institutes of Information Technology (Amendment) Act, 2017.

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THE SECOND SCHEDULE
(*See* section 3)

AMENDMENTS

Year	Act No.	Short title	Amendments
1	2	3	4
1961	43	The Income-tax Act, 1961	In section 54GA, in the *Explanation* to sub-section (*1*), in clause (*a*), after the word, brackets, letters "clause (*za*)", the words and figure "of section 2" shall be inserted.
2017	33	The Indian Institutes of Management Act, 2017	(*i*) in section 3, in clause (*f*), for the words "Director", means', the words "Director" means' shall be substituted; (*ii*) in section 36, in sub-section (*1*), for the word "Ordinance", the word "Ordinances" shall be substituted.

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